

STAR PROPERTY MANAGEMENT

Southwest Texas Residential Portfolio

3-Day Notice to Pay or Quit - Preparation & Filing Assessment Report

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INSPECTION / ASSESSMENT REPORT

Report Number:

Report Title:

SPM-EV-2026-0627

3-Day Notice to Pay or Quit - Preparation & Filing Assessment

Date Conducted: June 27, 2026

Conducted By:

Subject:

Patricia Nguyen, Property Manager - Star Property Management Resident Account Review and Legal Notice Preparation for Tanya Mitchell, Tenancy in Star

Property Management Southwest Texas Portfolio

Related Staff:

Brooke Phillips (Regional Supervisor), Teresa Wood (Leasing Coordinator), Linda Castillo

(Accounting Liaison)

I. EXECUTIVE SUMMARY

I conducted a full review of Tanya Mitchell's resident account today to assess the standing of her payment plan agreement and to determine the appropriate next step given her failure to remit the June 23, 2026 installment. My review confirms that Ms. Mitchell's account carries a combined outstanding balance comprising carried-forward rent arrears, accumulated late fees, and the current period's rent now due - all of which remain unpaid as of the date of this report. The payment plan entered into in good faith by both parties has been materially breached. Following Brooke Phillips's formal approval to escalate, I drafted the statutory 3-Day Notice to Pay Rent or Quit in compliance with applicable Texas Property Code provisions and saved the completed notice document to the shared file system. This report documents the condition of the account, the basis for the notice, and the steps taken and recommended going forward.

II. DETAILED FINDINGS

Finding Area 1: Resident Account Ledger - Balance Verification

Condition Observed: I pulled the resident ledger from QuickBooks and cross-referenced it against the Airtable tenancy record updated earlier today. The ledger shows three distinct components making up the total amount owed: (1) carried-forward rent arrears from prior billing periods that were rolled into the payment plan agreement, (2) accumulated late fees assessed in accordance with the late-fee clause of Ms. Mitchell's lease, and (3) the current month's rent installment now due and unpaid. All three components have been verified as outstanding with no partial payment received since the last plan installment that was honored.

Issues / Follow-Up: The combined balance is the controlling figure cited on the 3-day notice. Linda Castillo confirmed the ledger figures with me prior to the notice being drafted to ensure the stated amount is accurate.

and defensible. No discrepancies were found between QuickBooks and the Airtable record. The verified total has been incorporated into the face of the formal notice.

Finding Area 2: Payment Plan Agreement - Breach Assessment

Condition Observed: I reviewed the signed payment plan agreement on file in the shared document drive. The agreement stipulated a specific installment amount due on June 23, 2026. As of the close of business on that date and through today, June 27, 2026, no funds have been received from Ms. Mitchell, nor has she contacted the office to request a modification or communicate extenuating circumstances. The June 23 installment is now four days overdue with no cure in sight.

Issues / Follow-Up: The breach is unambiguous under the terms of the agreement. The payment plan explicitly stated that failure to make any scheduled installment on time would constitute a breach and trigger the right to pursue statutory remedies. I sent a formal follow-up email to Ms. Mitchell on the day of the missed payment notifying her of the breach and requesting an immediate response; no reply was received. The payment plan is now void, and the full outstanding balance is the basis for the legal notice.

Finding Area 3: Internal Communication and Escalation Chain

Condition Observed: I reviewed the communication trail in Slack and email to confirm that all required internal notifications were completed before the notice was drafted. Earlier today I posted a heads-up message in the relevant Slack channel alerting the team that Ms. Mitchell's payment plan had been breached and that no payment had been received. Shortly after, Brooke Phillips responded in the same channel with explicit written approval to proceed with the formal 3-day notice, directing me to draft and serve it.

Issues / Follow-Up: The escalation chain is complete and properly documented. Brooke Phillips's approval message is preserved in Slack and constitutes the supervisory authorization required by our internal eviction escalation policy. Teresa Wood has been copied on related communications to ensure the leasing side of the record is current. No gaps in the approval chain were identified.

Finding Area 4: Airtable Tenancy Record - Status and Documentation

Condition Observed: I reviewed the Airtable tenancy record for Ms. Mitchell's account, which I updated earlier today to reflect the breach status, the team alert, and the escalation to formal notice. The record now correctly reflects the current lifecycle stage of the tenancy as Legal Notice Issued and includes a timestamped log entry noting the initiation of the 3-day notice process.

Issues / Follow-Up: No discrepancies were observed between the Airtable record and the underlying documentation. The record serves as the operational source of truth for the team triaging this matter. All relevant dates - the payment plan installment due date, the breach date, and today's notice issuance date are accurately logged. No corrective action is needed on the record at this time.

Finding Area 5: 3-Day Notice Document - Content and Compliance Review

Condition Observed: I drafted the formal 3-Day Notice to Pay Rent or Quit and completed a content review before saving it to the shared document drive. The notice references the specific lease provision that governs nonpayment and late charges, identifies the full outstanding balance in itemized form covering arrears, late fees, and current rent, describes the payment plan and its breach as context for the accelerated demand, and clearly states that Ms. Mitchell has three calendar days from the date of service to either remit the full amount owed or vacate the premises. The notice is addressed to Tanya Mitchell at her unit of record.

Issues / Follow-Up: The notice language is consistent with Texas Property Code Section 24.005, which governs the required notice period for residential tenants. I confirmed that the three-day demand period is correctly stated and that the notice does not inadvertently waive any right by offering a partial-payment option. The completed notice has been saved to the shared document drive under the eviction proceedings folder for Ms. Mitchell's account. A copy is ready for physical service.

Finding Area 6: Lease File - Supporting Documentation Review

Condition Observed: I pulled Ms. Mitchell's original lease agreement from the shared document drive to verify the late-fee clause language, the nonpayment remedy provision, and the notice requirements. The lease is fully executed by both parties, the relevant provisions are clearly stated, and the lease term is current - Ms. Mitchell is an active tenant, not month-to-month, which is relevant to the eviction pathway.

Issues / Follow-Up: No issues were found with the lease file. The provisions cited in the 3-day notice map directly to the correct section numbers in the executed lease. The file is complete, with both the original lease and the signed payment plan addendum present and legible. No missing signatures or incomplete pages were identified.

Finding Area 7: Tenant Communication Record - Outreach History

Condition Observed: I reviewed the outreach history for Ms. Mitchell's account across email and the HubSpot leasing CRM contact record. The record confirms that written notice of the missed June 23 installment was sent to Ms. Mitchell's email address on file the same day the payment was missed, requesting an immediate response and confirming the consequences of non-cure. As of today, no response has been received through any channel - email, phone, or in-person office contact.

Issues / Follow-Up: The lack of response over four days following written notice strengthens the case for proceeding with the statutory 3-day notice. The HubSpot record has been updated to reflect the escalation status. Teresa Wood is monitoring the contact record for any inbound communication from Ms. Mitchell and has been asked to route any response immediately to me and to Brooke Phillips.

III. RECOMMENDATIONS AND NEXT STEPS

1. Serve the 3-Day Notice Promptly

The completed notice should be served on Ms. Mitchell today or no later than the morning of June 28, 2026, using a compliant method of service under Texas law - personal delivery to the tenant or a household member of suitable age and discretion, or posting on the inside of the main entry door with simultaneous first-class mail if personal service cannot be effected. The date and method of service must be documented immediately upon completion.

2. Log the Service Date and Method

As soon as service is completed, the Airtable tenancy record and the shared document drive folder should be updated to reflect the exact date and time of service, the method used, and the identity of the person who effected service. This log is critical if the matter proceeds to a justice court eviction filing.

3. Establish the Cure Deadline and Monitor

The three-day cure period begins the day after service. The team should note the cure deadline on the shared calendar and actively monitor whether Ms. Mitchell remits the full balance or makes contact. Brooke Phillips and I should be notified immediately if any payment or communication is received during the cure period.

4. Prepare Eviction Filing Materials in Parallel

To avoid delay if the notice goes uncured, I recommend that our eviction filing documentation - including the lease, payment plan, ledger, and notice with proof of service - be assembled and organized now so that a forcible detainer petition can be filed with the appropriate Justice of the Peace court on the first business day following expiration of the cure period, should Ms. Mitchell fail to pay or vacate.

5. Notify the Property Owner

Brooke Phillips should brief the portfolio owner on the current status of the Mitchell account and the legal notice that has been issued, consistent with our owner-relations communication standards. The owner should be informed of the likely timeline if an eviction filing becomes necessary, including expected court dates and

any vacancy and make-ready cost implications.

6. Hold All Partial Payments Pending Legal Guidance

If Ms. Mitchell tenders a partial payment during the cure period, it should not be accepted without first consulting with our eviction attorney, as acceptance of partial rent during the notice period may waive our right to proceed with the eviction under Texas law. Any funds tendered should be held and flagged immediately to Brooke Phillips and Linda Castillo.

7. Coordinate Make-Ready Planning Contingency

Linda Castillo and the maintenance lead should be informally notified that the unit may enter make-ready status in the coming weeks, so that any vendor scheduling needs can be anticipated without committing resources prematurely. No make-ready work should be ordered until the unit is legally vacated.

SIGNATURE AND CERTIFICATION

I certify that the findings documented in this report reflect my direct review of account records, communications, lease documents, and the prepared notice as conducted on June 27, 2026, and that the 3-Day Notice to Pay Rent or Quit has been drafted, reviewed for accuracy and legal compliance, and saved to the shared file system pending service.

Signed: Patricia Nguyen

Title:

Property Manager, Star Property Management

Date:

June 27, 2026

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